

Court No. - 21

Case :- WRIT - C No. - 62180 of 2012

Petitioner :- M/S Sisco Industries Ltd.

Respondent :- State Of U.P. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- C.S.C.,A.N. Singh,Mahboob Ahmad

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Het Singh Yadav,J.

Put up as fresh, if possible, on 4.12.2012 before another Bench of which one of us (S.P. Mehrotra, J.) is not a Member after obtaining nomination from the Hon'ble The Acting Chief Justice.

Order Date :- 30.11.2012

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Court No. - 36

Case :- WRIT - C No. - 62180 of 2012

Petitioner :- M/S Sisco Industries Ltd.

Respondent :- State Of U.P. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- C.S.C.,A.N. Singh,Mahboob Ahmad

Hon'ble Vineet Saran,J.

Hon'ble Mushaffey Ahmad,J.

By consent of learned counsel for the parties, put up on 10th December, 2012 as a fresh case.

Order Date :- 4.12.2012

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(Mushaffey Ahmad, J) (Vineet Saran, J)

Court No. - 36

Case :- WRIT - C No. - 62180 of 2012

Petitioner :- M/S Sisco Industries Ltd.

Respondent :- State Of U.P. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- C.S.C.,A.N. Singh,Mahboob Ahmad

Hon'ble Vineet Saran,J.

Hon'ble Mushaffey Ahmad,J.

The submission of learned counsel for the petitioner is that under Clause 3.4.2.5 of the Industrial and Service Sector Investment Policy, 2004, it is provided that there would be uninterrupted power supply in industrial areas. The said policy of the State Government was reiterated by the State Government vide letter dated 21.9.2012. It is not disputed that the petitioner has an industry in the U.P.S.I.D.C. industrial area, Naini and ever since the promulgation of the Industrial Policy of 2004, the petitioner is being provided uninterrupted power supply as per the said policy, at the scheduled rates, which the petitioner states that they have been paying and the power supply is continuing.

The petitioner is now aggrieved by the communication dated 5.11.2012 issued by the Executive Engineer, respondent no. 5 requiring the petitioner to get itself registered under clause 4.27 of the Electricity Supply Code 2005 for availing protective load facility under which the petitioner would be provided uninterrupted power supply. The contention of the petitioner is that the petitioner is entitled to the uninterrupted power supply under the said policy by the State Government at the scheduled rates at which they are being supplied electricity since the year 2004 and any change in the said condition requiring the petitioner to get itself registered under clause 4.27 of the Supply Code,(which would require additional charge @ 100% base demand charges without there being any change in the policy which is continuing since 2004 and has been reiterated by the State Government in the year 2012) would be illegal and without any authority of law.

Sri Mahboob Ahmad, learned counsel for the respondents does not dispute the fact that the petitioner has been availing the facility of uninterrupted power supply at the scheduled rate since the year 2004 and it was a mistake on the part of the respondent-corporation which went unnoticed and after the same has been noticed, the petitioner is now being required to get itself registered under clause 4.27 of the Supply Code. It is also not disputed that other similarly situated persons, such as the petitioner, have also been availing facility of uninterrupted power supply at the scheduled rate without getting themselves registered under clause 4.27 of the supply code since the year 2004.

In our view, the matter requires consideration.

The learned standing counsel has accepted notice for respondent no. 1, Sri A.N. Singh for respondent no. 2 and Sri Mahboob Ahmad has put in appearance on behalf of respondents no. 3 to 5. They pray for and are allowed one week's time to file counter affidavit. Petitioner may file rejoinder affidavit within two weeks thereafter.

List on 13th January, 2013.

Considering the facts and circumstances of the case and keeping in view the

submissions made by the learned counsel for the parties, we are of the opinion that the petitioner has been made out a prima facie case for grant of interim protection. Accordingly, it is directed that the effect and operation of the order dated 5.11.2012 passed by the respondent no. 5 shall remain stayed till the next date of listing and the petitioner shall be entitled to the same benefit which was being provided prior to the passing of the impugned order.

Order Date :- 11.12.2012

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Court No. - 36

Case :- WRIT - C No. - 62180 of 2012

Petitioner :- M/S Sisco Industries Ltd.

Respondent :- State Of U.P. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- C.S.C.,A.N. Singh,Mahboob Ahmad

Hon'ble Vineet Saran,J.

Hon'ble Bharat Bhushan,J.

Learned counsel for the petitioner states that he has been served with a counter affidavit on behalf of respondent no.5 today. He prays for and is granted two weeks time to file rejoinder affidavit.

List immediately thereafter.

Interim order to continue till the next date of listing.

Order Date :- 15.1.2013

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(Bharat Bhushan,J.)

(Vineet Saran,J.)

Court No. - 34

Case :- WRIT - C No. - 62180 of 2012

Petitioner :- M/S Sisco Industries Ltd.

Respondent :- State Of U.P. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- C.S.C.,A.N. Singh,Mahboob Ahmad

Hon'ble Vineet Saran,J.

Hon'ble Pankaj Naqvi,J.

An illness slip has been sent today by Sri Mahboob Ahmad, learned counsel for the respondent.

List this case in the next cause list before the appropriate Bench. This matter shall not be treated as tied up or part-heard to this Bench.

The interim order shall continue to operate till the next date of listing.

Order Date :- 4.2.2013

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(Pankaj Naqvi, J)

(Vineet Saran, J)

Court No. - 3

Case :- WRIT - C No. - 62180 of 2012

Petitioner :- M/S Sisco Industries Ltd.

Respondent :- State Of U.P. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- C.S.C.,A.N. Singh,Mahboob Ahmad

Hon'ble Laxmi Kanta Mohapatra,J.

Hon'ble Mrs. Sunita Agarwal,J.

List after two weeks.

Interim order to continue till the next date of listing.

Order Date :- 22.2.2013

PKB

Court No. - 9

Case :- WRIT - C No. - 62180 of 2012

Petitioner :- M/S Sisco Industries Ltd.

Respondent :- State Of U.P. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- C.S.C.,A.N. Singh,Mahboob Ahmad

Hon'ble Ashok Bhushan,J.

Hon'ble B. Amit Sthalekar,J.

List in the next cause list.

Interim order to continue till then.

Order Date :- 8.3.2013

N Tiwari

Court No. - 3

Case :- WRIT - C No. - 62180 of 2012

Petitioner :- M/S Sisco Industries Ltd.

Respondent :- State Of U.P. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- C.S.C.,A.N. Singh,Mahboob Ahmad

Hon'ble Laxmi Kanta Mohapatra,J.

Hon'ble Mrs. Sunita Agarwal,J.

List after two weeks.

Interim order, if operative today, shall continue to remain in operation till the next date of listing.

Order Date :- 15.3.2013

P.P.

Court No. - 29

Case :- WRIT - C No. - 62180 of 2012

Petitioner :- M/S Sisco Industries Ltd.

Respondent :- State of U.P. and Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- C.S.C.,A.N. Singh,Ajay Singh,Mahboob Ahmad

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. Case is called out in revised list. No one is present on behalf of petitioner to press this writ petition. Learned counsel for the respondents are present.
2. It appears that by efflux of time, the writ petition has become infructuous and petitioner does not want to contest the same.
3. Accordingly, writ petition is **dismissed**. Interim order, if any, stands vacated.
4. In case the petitioner feels that the matter survives, liberty is granted to him to move an application for recalling this order within six weeks from today.

Order Date :- 2.8.2024

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HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 62180 of 2012

M/S Sisco Industries Ltd.

.....Petitioner(s)

Versus

State of U.P. and Others

.....Respondent(s)

Counsel for Petitioner(s) : B.C. Rai

Counsel for Respondent(s) : A.N. Singh, Ajay Singh, Mahboob Ahmad

Court No. - 29

HON'BLE MAHESH CHANDRA TRIPATHI, J.

HON'BLE NAND PRABHA SHUKLA, J.

1. Heard learned counsel for the applicant.
2. Learned counsel for the petitioner states that similar controversy has also been raised in a bunch of writ petitions with leading Writ-C No.26512 of 2016 (M/s Ranjeeta Cold Storage & Ice Plant v. State of U.P. & Ors.) and the said writ petitions are still pending consideration. He states that instant matter still survives and may be heard along with the said writ petitions.
3. Cause shown in the affidavits accompanying the delay condonation application as well as restoration application is sufficient. Both the applications are allowed. The order dated 02.08.2024 dismissing the writ petition as infructuous is recalled. The writ petition is restored to its original number.
4. List in the next cause list.

(Nand Prabha Shukla,J.) (Mahesh Chandra Tripathi,J.)

August 26, 2025

SP/